Q & A about the ADA

1. What is the Americans with Disabilities Act (ADA)?

The Americans with Disabilities Act (ADA) prohibits discrimination n the basis of disability in employment, state and local government, public accommodations, commercial facilities, transportation, and telecommunications.

2. Definition of "Disability" under the ADA

The ADA only applies to persons who meet the definition of "disabled" under the Act. A person is considered disabled, and so protected under the ADA, if he or she either actually has, or is thought to have, a physical or mental impairment that substantially limits what the ADA calls a "major life activity". Major life activities are the basic components of any person's life — including walking, talking, seeing, and learning. If a person has an impairment that substantially limits his or her ability to perform one or more of these activities, that person is considered disabled under the ADA.

The ADA does not specifically name all of the impairments that are covered, but common examples of disabilities include confinement to a wheelchair, reliance on assistive devices such as canes and walkers, blindness, deafness, a learning disability, and certain kinds of mental illness.

3. What accommodations do I need to make in my facility to satisfy the ADA?

When checking in a customer with a disability, remember the following things:

A. A service attendant does not have to pay the drop-in fee when accompanying a person with a disability if they are here to assist that person.
B. The service attendant is NOT allowed to participate in activities when they are here assisting a disabled person.
C. A disabled person may bring a service animal into the building as long as the appropriate guidelines are adhered to. Please see pages 29 and 30 for information on service animal guidelines.

Examples :

1. If a disabled person is in the fitness area walking on a treadmill and the attendant is standing next to him/her watching their balance, this is OK.
2. If a disabled person is in the fitness area walking on a treadmill and the attendant is walking on the treadmill right next to him/her, this is NOT ok.
3. If a disabled person is in the pool doing water exercises and the attendant is in the water next to him/her as a water spotter, this is OK.
4. If a disabled person is in the pool doing water exercises and the attendant is in the water also doing water exercised, this is NOT ok.

At the Front Desk, we will most commonly need to meet ADA guidelines and criteria under Title II and Title III.

A. Title II - State and Local Government Activities

Title II of the ADA covers all activities of state and local governments regardless of the government entity's size or receipt of federal funding. Title II requires that state and local governments give people with disabilities an equal opportunity to benefit from all of their programs, services, and activities (e.g. public education, employment, transportation, recreation, health care, social services, courts, voting, and town meetings.

State and local governments are required to follow architectural standards in the new construction and alteration of their buildings. They also must relocate programs or otherwise provide access in inaccessible older buildings, and communicate effectively with people who have hearing, vision, or speech disabilities. Public entities are not required to take actions that would result in undue financial or administrative burdens. They are required to make reasonable modifications to policies, practices, and procedures to avoid discrimination, unless they can demonstrate that doing so would fundamentally alter the nature of the service, activity or program being provided.

Complaints of Title II may be filed with the U.S. Department of Justice within 180 days of the date of the discrimination. The Department may bring a lawsuit where it has investigated a matter and has been unable to resolve violations. Title II may also be resolved through private lawsuits in federal court. It is not necessary to file a complaint with the Department of Justice (DOJ) or any other federal agency to receive a "right-to-sue" letter before going to court.

B. Title III - Public Accommodations

Title III of the ADA covers businesses and nonprofit service providers that are public accommodations, privately operated entities offering certain types of courses and examinations, privately operated transportation, and commercial facilities. Public accommodations are private entities who own, lease, lease to, or operate facilities such as restaurants, retail stores, hotels, movie theatres, private schools, convention centers, doctors' offices, homeless shelters, transportation depots, zoos, funeral homes, day care centers, and recreation facilities including sports stadiums and fitness clubs. Transportation services provided by private entities are also covered by Title III.

Public accommodations must comply with basic non-discrimination requirements that prohibit exclusion, segregation, and unequal treatment. They also must comply with specific requirements related to architectural standards for new and altered buildings; reasonable modifications to policies, practices and procedures; effective communication with people with hearing, vision, or speech disabilities; and other access requirements. Additionally, public accommodations must remove barriers in existing buildings where it is easy to do so without much difficulty or expense, given the public accommodations resources.

4. Service Animals

Service animals are defined as dogs that are individually trained to do work or perform tasks for people with disabilities. Examples of such work or tasks include guiding people who are blind, alerting people who are deaf, pulling a wheelchair, alerting and protecting a person who is having a seizure, reminding a person with mental illness to take prescribed medications, calming a person with Post Traumatic Stress Disorder (PTSD) during an anxiety attack, or performing other duties. Service animals are working animals, not pets. The work or task a dog has been trained to provide must be directly related to the person's disability. Dogs whose sole function is to provide comfort or emotional support do not qualify as service animals under the ADA.

Under the Americans with Disabilities Act (ADA), businesses and organizations that serve the public must allow people with disabilities to bring their service animals into all areas of the facility where customers are normally allowed to go. This federal law applies to all businesses open to the public, including restaurants, hotels, taxis and shuttles, grocery and department stores, hospitals and medical offices, theaters, health clubs, parks, and zoos

More About Service Animals

- (a) General. Generally, a public entity shall modify its policies, practices, or procedures to permit the use of a service animal by an individual with a disability.
- (b) Exceptions. A public entity may ask an individual with a disability to remove a service animal from the premises if -
- (1) The animal is out of control and the animal's handler does not take effective action to control it; or
- (2) The animal is not housebroken.
- (c) If an animal is properly excluded. If a public entity properly excludes a service animal under § 35.136(b), it shall give the individual with a disability the opportunity to participate in the service, program, or activity without having the service animal on the premises.
- (d) A service animal shall be under the control of its handler. A service animal shall have a harness, leash, or other tether, unless either the handler is unable because of a disability to use a harness, leash, or other tether, or the use of a harness, leash, or other tether would interfere with the service animal's safe, effective performance of work or tasks, in which case the service animal must be otherwise under the handler's control (e.g., voice control, signals, or other effective means).
- (e) Care or supervision. A public entity is not responsible for the care or supervision of a service animal.

- (f) Inquiries. A public entity shall not ask about the nature or extent of a person's disability, but may make two inquiries to determine whether an animal qualifies as a service animal. A public entity may ask if the animal is required because of a disability and what work or task the animal has been trained to perform. A public entity shall not require documentation, such as proof that the animal has been certified, trained, or licensed as a service animal. Generally, a public entity may not make these inquiries about a service animal when it is readily apparent that an animal is trained to do work or perform tasks for an individual with a disability (e.g., the dog is observed guiding an individual who is blind or has low vision, pulling a person's wheelchair, or providing assistance with stability or balance to an individual with an observable mobility disability).

- (g) Access to areas of a public entity. Individuals with disabilities shall be permitted to be accompanied by their service animals in all areas of a public entity's facilities where members of the public, participants in services, programs or activities, or invitees, as relevant, are allowed to go.

- (h) Surcharges. A public entity shall not ask or require an individual with a disability to pay a surcharge, even if people accompanied by pets are required to pay fees, or to comply with other requirements generally not applicable to people without pets. If a public entity normally charges individuals for the damage they cause, an individual with a disability may be charged for damage caused by his or her service animal.

- (i) Miniature horses.

- (1) Reasonable modifications. A public entity shall make reasonable modifications in policies, practices, or procedures to permit the use of a miniature horse by an individual with a disability if the miniature horse has been individually trained to do work or perform tasks for the benefit of the individual with a disability.

- (2) Assessment factors. In determining whether reasonable modifications in policies, practices, or procedures can be made to allow a miniature horse into a specific facility, a public entity shall consider—

- (i) The type, size, and weight of the miniature horse and whether the facility can accommodate these features;

- (ii) Whether the handler has sufficient control of the miniature horse;

- (iii) Whether the miniature horse is housebroken; and

- (iv) Whether the miniature horse's presence in a specific facility compromises legitimate safety requirements that are necessary for safe operation.

This is an archived document.
Please go to Frequently Asked Questions about Service Animals and the ADA for the current document.

U.S. Department of Justice
Civil Rights Division
Disability Rights Section

COMMONLY ASKED QUESTIONS ABOUT SERVICE ANIMALS IN PLACES OF BUSINESS

1. Q: What are the laws that apply to my business?

A: Under the Americans with Disabilities Act (ADA), privately owned businesses that serve the public, such as restaurants, hotels, retail stores, taxicabs, theaters, concert halls, and sports facilities, are prohibited from discriminating against individuals with disabilities. The ADA requires these businesses to allow people with disabilities to bring their service animals onto business premises in whatever areas customers are generally allowed.

2. Q: What is a service animal?

A: The ADA defines a service animal as any guide dog, signal dog, or other animal individually trained to provide assistance to an individual with a disability. If they meet this definition, animals are considered service animals under the ADA regardless of whether they have been licensed or certified by a state or local government.

Service animals perform some of the functions and tasks that the individual with a disability cannot perform for him or herself. Guide dogs are one type of service animal, used by some individuals who are blind. This is the type of service animal with which most people are familiar. But there are service animals that assist persons with other kinds of disabilities in their day-to-day activities. Some examples include:

_ Alerting persons with hearing impairments to sounds.

_ Pulling wheelchairs or carrying and picking up things for persons with mobility impairments.

_ Assisting persons with mobility impairments with balance.

A service animal is not a pet.

3. Q: How can I tell if an animal is really a service animal and not just a pet?

A: Some, but not all, service animals wear special collars and harnesses. Some, but not all, are licensed or certified and have identification papers. If you are not certain that an animal is a service animal, you may ask the person who has the animal if it is a service animal required because of a disability. However, an individual who is going to a restaurant or theater is not likely to be carrying documentation of his or her medical condition or disability. Therefore, such documentation generally may not be required as a condition for providing service to an individual accompanied by a service animal. Although a number of states have programs to certify service animals, you may not insist on proof of state certification before

permitting the service animal to accompany the person with a disability.

4. Q: What must I do when an individual with a service animal comes to my business?

A: The service animal must be permitted to accompany the individual with a disability to all areas of the facility where customers are normally allowed to go. An individual with a service animal may not be segregated from other customers.

5. Q: I have always had a clearly posted "no pets" policy at my establishment. Do I still have to allow service animals in?

A: Yes. A service animal is <u>not</u> a pet. The ADA requires you to modify your "no pets" policy to allow the use of a service animal by a person with a disability. This does not mean you must abandon your "no pets" policy altogether but simply that you must make an exception to your general rule for service animals.

6. Q: My county health department has told me that <u>only</u> a guide dog has to be admitted. If I follow those regulations, am I violating the ADA?

A: Yes, if you refuse to admit any other type of service animal on the basis of local health department regulations or other state or local laws. The ADA provides greater protection for individuals with disabilities and so it takes priority over the local or state laws or regulations.

7. Q: Can I charge a maintenance or cleaning fee for customers who bring service animals into my business?

A: No. Neither a deposit nor a surcharge may be imposed on an individual with a disability as a condition to allowing a service animal to accompany the individual with a disability, even if deposits are routinely required for pets. However, a public accommodation may charge its customers with disabilities if a service animal causes damage so long as it is the regular practice of the entity to charge non-disabled customers for the same types of damages. For example, a hotel can charge a guest with a disability for the cost of repairing or cleaning furniture damaged by a service animal if it is the hotel's policy to charge when non-disabled guests cause such damage.

8. Q: I operate a private taxicab and I don't want animals in my taxi; they smell, shed hair and sometimes have "accidents." Am I violating the ADA if I refuse to pick up someone with a service animal?

A: Yes. Taxicab companies may not refuse to provide services to individuals with disabilities. Private taxicab companies are also prohibited from charging higher fares or fees for transporting individuals with disabilities and their service animals than they charge to other persons for the same or equivalent service.

9. Q: Am I responsible for the animal while the person with a disability is in my business?

A: No. The care or supervision of a service animal is solely the responsibility of his or her owner. You are not required to provide care or food or a special location for the animal.

10. Q: What if a service animal barks or growls at other people, or otherwise acts out of control?

A: You may exclude any animal, including a service animal, from your facility when that animal's behavior poses a direct threat to the health or safety of others. For example, any service animal that displays vicious behavior towards other guests or customers may be excluded. You may not make assumptions, however, about how a particular animal is likely to behave based on your past experience with other animals. Each situation must be considered individually.

Although a public accommodation may exclude any service animal that is out of control, it should give the individual with a disability who uses the service animal the option of continuing to enjoy its goods and services without having the service animal on the premises.

11. Q: Can I exclude an animal that doesn't really seem dangerous but is disruptive to my business?

A: There may be a few circumstances when a public accommodation is not required to accommodate a service animal--that is, when doing so would result in a fundamental alteration to the nature of the business. Generally, this is not likely to occur in restaurants, hotels, retail stores, theaters, concert halls, and sports facilities. But when it does, for example, when a dog barks during a movie, the animal can be excluded.

If you have further questions about service animals or other requirements of the ADA, you may call the U.S. Department of Justice's toll-free ADA Information Line at 800-514-0301 (voice) or 800-514-0383 (TDD).

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updated January 14, 2008

Alexander Graham Bell
ALEXANDER GRAHAM BELL ASSOCIATION
FOR THE DEAF AND HARD OF HEARING

Swim Lessons with Hearing Loss: Tips for Instructors and Parents

by Stephanie Ortner

As summertime approaches, many children and families look forward to spending time at pools and beaches, or participating in other fun water activities. For children with hearing loss, swimming can be more challenging than for children who have typical hearing. Children who use cochlear implants or hearing aids to aid communication are unable to wear their technology in the water. They are suddenly left without the ability to communicate as they do in their daily lives with their auditory devices. And as fatal drowning remains the second-leading cause of unintentional injury-related death for children ages 1 to 14 years, the need to ensure proper swimming techniques increases.

From my experience as a swim instructor and speech-language pathologist, I have found that very few programs offer adequate assistance for these children. Swim instructors are often not prepared to teach children with hearing loss and are unsure about how to communicate with that child. This can cause frequent communication breakdowns, making swim lessons unproductive and often frustrating for all parties.

The following suggestions are for both parents and instructors. Parents should discuss these suggestions with the instructor and make adjustments as necessary.

Parent Tips:

1. You do not need to seek out a swim instructor who specializes in working with children who have hearing aids and/or cochlear implants.
2. Help your instructor help your child. The most important conversation you need to have with your instructor is to explain your child's deafness, the cochlear implant or hearing aid, and your child's mode of communication. He or she needs to understand that your child is part of the hearing world and most likely does not sign.

Tips for the Instructor:

1. Create and laminate a picture checklist of each activity that will be covered during the swim lesson. A copy of the checklist should be sent home.
2. Each lesson should be conducted in the same order as the previous one, with the newest activity added on to the end. As the child improves, the old activities will take less time, making room for

the new ones. The consistency and predictability of the lesson leaves the child with less questions, wonder and fear.

3. Discuss the checklist with the child before stepping in the water, while he can wear his cochlear implant or hearing aids and have appropriate access to sound. For example, the instructor may want to explain to the child that he will be practicing floating on his back and the instructor will be holding him. The instructor can even practice this activity on land, showing the child where his arms and legs should be, and exactly how he will be held. If the instructor makes a promise to not let go, keep it. Learning to swim is all about trust in your instructor and confidence in yourself.
4. Discuss important gestures and even a few functional signs or signals that may be necessary for communication while without amplification. The instructor may want to learn signs or signals for words and phrases such as "wait," "stop," "watch me," "try again," "three more tries," "I will help you," "try by yourself," etc. This is also a good opportunity to discuss behavioral expectations and water safety.
5. Once in the water, use and follow the visual checklist to help the child understand what is coming next. After showing the child which activity is next on the list, demonstrate it. Many children can pick up on an activity after seeing it modeled just once. Then, assist the child by holding him in the correct body position or moving his arms or legs for him before allowing him to try the activity independently. Use as many gestures and signs or signals as necessary to explain what the child should be doing.
6. Remember, stick to what was discussed before the lesson. If the instructor promised he wouldn't let go, then he shouldn't. As mentioned before, consistency and predictability are comforting for children. For my lessons, we stick to the "Rule of Five." At the beginning of each session, we always do five bobs with bubbles. We count to five when we float on our back, we hold our breath under water for five seconds, we pick up five rings from the bottom of the pool and we attempt an activity or stroke five times before we move on to something else.
7. (Attention Parents: You may need to explain this theory to your instructor in further detail.) In the listening and spoken language world, we are all familiar with the "Auditory Sandwich." This theory of using auditory cues first, then visual cues, followed by auditory cues again holds true for swim lessons. 1) The instructor discussed everything through audition prior to the lesson. 2) The instructor used visual demonstrations, gestures and signs during the lesson. 3) To finish the "sandwich," end the lesson with an auditory recap of everything you worked on.
8. Make sure to leave enough time to review the checklist and discuss what was easy (or mastered) and what was hard (or still needs work). Discuss any breakdowns that may have occurred with the gestures, signs or signals, review techniques on land (similar to what might have been done prior to the lesson), confront any behavioral issues and set the tone for the following lesson.

Outside of the Pool

Much like listening and spoken language therapy, carry-over at home is essential. The days between each lesson can be used to discuss the previous lesson, review the checklist and even practice the activities out of the water. This reinforces everything learned and prepares the child for the pre-lesson discussion with the instructor at the next lesson.

Learning to swim can be a slow process for any child. Imagine trying to learn something new and scary without being able to hear reassuring words and confidence boosters. Teaching the instructor to maximize auditory time out of the water and become a visual instructor in the water will help make the experience more pleasant for everyone involved. The more enjoyable the experience, the faster the child will learn. Learning to swim properly and early may save your child's life!

Source: *Volta Voices*, May/June 2010

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Introduction to Adapted Aquatics

What is Adapted Aquatics?
Park Authority's award-winning Adapted Aquatics is an individualized swimming and water activity program for customers with physical and developmental disabilities. This success-oriented program targets individuals who do not currently meet the prerequisites for participating in an inclusive environment. The program is designed to develop basic swim skills in a structured setting with individualized support from trained volunteers.

Adapted Aquatics Is....

- For those individuals who need and want specialized instruction to maximize learning and participation
- The use of precise and systematic instructional technology
- Making people feel good about themselves
- More than swimming (diving, synchronized swimming, etc.!)

The individuals who enroll in the Adapted Aquatics classes are first and foremost individuals. They may have varying levels of strengths and some weakness when performing certain activities. Individuals may have specific disabilities, which may or may not affect activity performance. If we focus our attention on the possible cause of performance difficulties – poor balance or coordination, for example – we may be able to help the individual do the activities successfully.

Remember:
1. A person
2. A person who has varying abilities
3. A person who has a disability

❖Swimming is and always should be fun – for both the volunteer and the student.

Adapted Aquatics Volunteer Training

General Principles

Teaching the individual with a disability

Teaching a person who has a disability is often no different from teaching those who do not have a disability. The best teaching is always individualized. The challenge is to adapt teaching methods and sometimes the skills taught to teach individuals with disabilities. Aquatic activities can be of great benefits:

Organic Development: increasing cardiovascular fitness, muscular strength, endurance, and flexibility. Additional benefits in perceptual motor development and function; plus participation in a life-long healthful activity.

Psychological Benefits: positive emotional outlets, improved self-image, and opportunity for success.

Social Benefits: positive emotional interaction, being able to do activities others do, learning skills that make them safer when engaging in recreational activities with family and friends.

You should always teach correct strokes whenever possible, and modify only if the individual needs to adjust the stroke.

You're teaching Approach:

Teaching swimming is exciting and fun. Some attributes that will help you teach people wo have disabilities include:

1) The capacity to care " The capacity To care is the thing which gives life its greatest SIGNIFICANE"
2) Knowledge- of swimming, development and some about disabilities. An important thing to remember is that sometimes what we know can get in the water of what we could learn.
3) Listening- is a very important skill in being a successful teacher.
4) Touch- be understanding about being touched and grabbed.
5) Attitude and prejudices- develop- a positive attitude- look at the things your students can do, not at all the things they cannot do. Removing prejudice from your thinking is a lifelong process.
6) Ignore Categories and Labels- none of us fits in a category or labels. Relate to each person as an individual. Irrespective of any disability and established a relationship of respect and trust.
7) While it is important for you to feel comfortable in teaching a person with a disability it is also important that your student feels comfortable in the learning situation. This comes when your student knows your expectations, your teaching approach is consistent, and communication is effective by using active listening skills. Always remember your student has a disability, but also has many abilities. Focus your attention on your student's abilities and accomplishments.

Behavior Management Principles

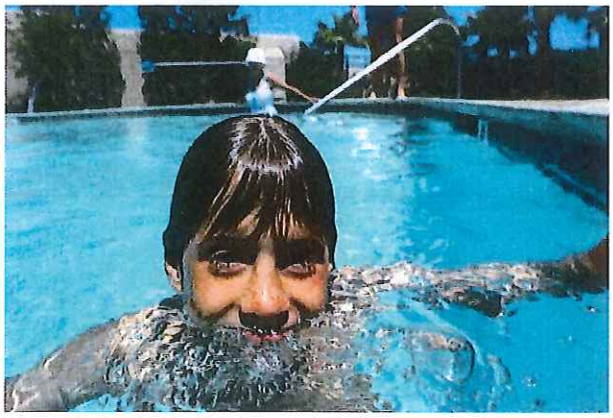
- Clearly communicate rules and leader expectations (post for everyone to see)
- Consistently enforce limits
- Recognize learning and language barriers
- Focus on positives, reward and praise, instead of always providing consequences for negative behaviors
- Be consistent with rewards and consequences
- Communicate known changes in routines and schedules early
- Teach alternative to aggressive behaviors
- Praise Liberally for effort and good choices
- Provide choices (You may choose A or B")
- Portray a matter of fact attitude, remain calm and controlled, use humor to deescalate situations
- Verbally address participants away from peers, if possible
- Use "I " messages to communication your thoughts and feels instead of "You" messages. For example "I need help picking up now." Instead of you need to start cleaning up now"

Safety and Behavioral Issues

- Maintain adequate supervision
- Know Seize Management
- Consistent rules and teaching
- Ask caregivers for best behavior management techniques
- Behavior Modification
  - Ignore
  - Redirect
  - Reinforce
  - Remove when absolutely necessary

Modifying Instructions

- Think on your feet
- Give clear directions
- Engage all participants
- Monitor Progress
- Give feedback
- Manage Behaviors



Water Skills /Water Fun

Water Skills	Things to Remember	Making it FUN
IN and Out of Water:	We want to gain independence and keep safety in mind. Using the ladder and ramp are important.	- Practice everyday
Breathing:	Progresses through these steps: (May not be Sequential) Bubbles Face in water Breathing to side Breathing while stroking	-Ping pong games - visual reminders -humming in the water -motor boat sounds -looking for fish at the bottom -being a log rolling in the water
Floating: back and belly *-Use noodles and life jackets if needed.*	This starts with help from adults/ flotation devices and moves towards independence. Often floating on the back is the harder skill to master... Takes Trust.	-Take a nap on your back -Count the stars in the sky -Fly on your belly like superman
Front swim strokes: *Use noodles and life jackets if needed.*	This begins with separate arm movement. Reaching and pulling the water. Then it moves to arms out of the water moving in bigger circles. Finally we simulate the free style crawl with arms and side breathing.	- high fives in front with vol. - scooping ice cream on surface - making big splash arms. - doggy paddle/ with barking -
Back swim strokes: *Use noodles and life jackets if needed.*	Most swimmers start with elementary back... Tickle, Tee, Touch method. Then they move to pinwheel arms of the back stroke.	-angle wing approach/ out and in - a game of chase while you walk behind them. -
Kicking: *Use noodles and life jackets if needed.*	Kicking often can be taught by itself before put with arm movements. Primarily teach the flutter kick at first.	-Splash competitions -Making your car go
Song Ideas:	Ring a Round an OTTER If you are happy and you know it Bingo Hokey pokey	Humpy dumpty London bridge Old McDonald Bear Hunt
Game Ideas:	Simon says Races Treasure hunt with Toys	Dive for toys on bottom

TEN DO'S & DON'TS WHEN YOU MEET A PERSON WITH A DISIBILITY

1. Offer assistance as you would to anyone else. The person will indicate whether or not the help is needed and "no thank you" must be respected. Most people who are disabled will not hesitate to ask for needed help and will be specific as to how it should be given. For example, a person who is blind usually prefers to take your arm rather than to have you grab his or hers.

2. Noticing an obvious disability is not rude, however, asking personal questions about it is inappropriate.

3. Always talk directly to a person who has a disability rather than to the person who may be accompanying him or her. Never talk about the person as if they do not exist.

4. Do not be concerned if you use the words "walking" or "running" when talking to a person who uses a wheelchair, or "do you see?" when talking to a person who is blind. People with disabilities use these words themselves and think nothing of it.

5. Do not avoid using words like blind or deaf when associating with people with these disabilities. People with disabilities are aware of their disabilities and do not need to be shielded from the facts.

6. When talking to a person who uses a wheelchair for any length of time, it is better to sit down in order to be at the same eye level. It is very tiring for a person to look up for a long time.

7. Be sensitive to architectural barriers in your facility. Be aware of federal and state laws that may apply to eliminating architectural barriers in your establishment. Everyone must be concerned and alert to this very real problem.

8. Remember that if a person does not turn around in response to a call, it may be that he or she is deaf. A light tap on the shoulder to get a person's attention makes sense.

9. Never gesture about a person who is blind to someone else who may be present. This will inevitably be picked up and make the person who is blind feel that you are "talking behind his or her back".

10. Lip reading by persons who are deaf can be aided by being sure that the light is on. your face and not behind you, and by taking all obstruction such as pipes, cigarettes or gum out of the mouth, and speaking slowly. Additional communication could include body language, pantomime and gestures of all kinds and written communication if necessary.

10 Things Your Student with Autism Wishes You Knew

By Ellen Notbohm

1. Behavior is communication. All behavior occurs for a reason. It tells you, even when my words can't, how I perceive what is happening around me. Negative behavior interferes with my learning process. But merely interrupting these behaviors is not enough; teach me to exchange these behaviors with proper alternatives so that real learning can flow.

Start by believing this: I truly do want to learn to interact appropriately. No child wants the negative feedback we get from "bad" behavior. Negative behavior usually means I am overwhelmed by disordered sensory systems, cannot communicate my wants or needs or don't understand what is expected of me. Look beyond the behavior to find the source of my resistance. Keep notes as to what happened immediately before the behavior: people involved, time of day, activities, settings. Over time, a pattern may emerge.

2. Never assume anything. Without factual backup, an assumption is only a guess. I may not know or understand the rules. I may have heard the instructions but not understood them. Maybe I knew it yesterday but can't retrieve it today.

Ask yourself:
• Are you sure I really know how to do what is being asked of me? If I suddenly need to run to the bathroom every time I'm asked to do a math sheet, maybe I don't know how or fear my effort will not be good enough. Stick with me through enough repetitions of the task to where I feel competent. I may need more practice to master tasks than other kids.

• Are you sure I actually know the rules? Do I understand the reason for the rule (safety, economy, health)? Am I breaking the rule because there is an underlying cause? Maybe I pinched a snack out of my lunch bag early because I was worried about finishing my science project, didn't eat breakfast and am now famished.

3. Look for sensory issues first. A lot of my resistant behaviors come from sensory discomfort. One example is fluorescent lighting, which has been shown over and over again to be a major problem for children like me. The hum it produces is very disturbing to my hypersensitive hearing, and the pulsing nature of the light can distort my visual perception, making objects in the room appear to be in constant movement. An incandescent lamp on my desk will reduce the flickering, as will the new, natural light tubes. Or maybe I need to sit closer to you; I don't understand what you are saying because there are too many noises "in between" – that lawnmower outside the window, Jasmine whispering to Tanya, chairs scraping, pencil sharpener grinding.

Ask the school occupational therapist for sensory-friendly ideas for the classroom. It's actually good for all kids, not just me.

4. Provide me a break to allow for self-regulation before I need it. A quiet, carpeted corner of the room with some pillows, books and headphones allows me a place to go to re-group when I feel overwhelmed, but isn't so far physically removed that I won't be able to rejoin the activity flow of the classroom smoothly.

5. Tell me what you want me to do in the positive rather than the imperative. "You left a mess by

the sink!" is merely a statement of fact to me. I'm not able to infer that what you really mean is "Please rinse out your paint cup and put the paper towels in the trash." Don't make me guess or have to figure out what I should do.

6. Keep your expectations reasonable. That all-school assembly with hundreds of kids packed into bleachers and some guy droning on about the candy sale is uncomfortable and meaningless to me. Maybe I'd be better off helping the school secretary put together the newsletter.

7. Help me transition between activities. It takes me a little longer to motor plan moving from one activity to the next. Give me a five-minute warning and a two-minute warning before an activity changes – and build a few extra minutes in on your end to compensate. A simple clock face or timer on my desk gives me a visual cue as to the time of the next transition and helps me handle it more independently.

8. Don't make a bad situation worse. I know that, even though you are a mature adult, you can sometimes make bad decisions in the heat of the moment. I truly don't mean to melt down, show anger or otherwise disrupt your classroom. You can help me get over it more quickly by not responding with inflammatory behavior of your own. Beware of these responses that prolong rather than resolve a crisis:

- Raising pitch or volume of your voice. I hear the yelling and shrieking, but not the words.
- Mocking or mimicking me. Sarcasm, insults or name-calling will not embarrass me out of the behavior.
- Making unsubstantiated accusations
- Invoking a double standard
- Comparing me to a sibling or other student
- Bringing up previous or unrelated events
- Lumping me into a general category ("kids like you are all the same").

9. Criticize gently. Be honest – how good are you at accepting "constructive" criticism? The maturity and self-confidence to be able to do that may be light years beyond my abilities right now. Should you never correct me? Of course not. But do it kindly, so that I actually hear you.

- Please! Never, ever try to impose discipline or correction when I am angry, distraught, overstimulated, shut down, anxious or otherwise emotionally unable to interact with you.

- Again, remember that I will react as much, if not more, to the qualities of your voice than to the actual words. I will hear the shouting and the annoyance, but I will not understand the words and therefore will not be able to figure out what I did wrong. Speak in low tones and lower your body as well, so that you are communicating on my level rather than towering over me.

- Help me understand the inappropriate behavior in a supportive, problem-solving way rather than punishing or scolding me. Help me pin down the feelings that triggered the behavior. I may say I was angry but maybe I was afraid, frustrated, sad or jealous. Probe beyond my first response.

- Practice or role-play – show me – a better way to handle the situation next time. A storyboard, photo essay or social story helps. Expect to role-play lots over time. There are no one-time fixes. And when I do get it right "next time," tell me right away.

• It helps me if you yourself are modeling proper behavior for responding to criticism.

10. Offer real choices – and only real choices. Don't offer me a choice or ask a "Do you want…?" question unless you are willing to accept "No" for an answer. "No" may be my honest answer to "Do you want to read out loud now?" or "Would you like to share paints with William?" It's hard for me to trust you when choices are not really choices at all.

You take for granted the amazing number of choices you have on a daily basis. You constantly choose one option over others knowing that both having choices and being able to choose provides you control over your life and future. For me, choices are much more limited, which is why it can be harder to feel confident about myself. Providing me with frequent choices helps me become more actively engaged in everyday life.

• Whenever possible, offer a choice within a "have-to." Rather than saying: "Write your name and the date on the top of the page," say: "Would you like to write your name first, or would you like to write the date first?" or "Which would you like to write first, letters or numbers?" Follow by showing me: "See how Jason is writing his name on his paper?"

• Giving me choices helps me learn appropriate behavior, but I also need to understand that there will be times when you can't. When this happens, I won't get as frustrated if I understand why:
• **"I can't give you a choice in this situation because it is dangerous. You might get hurt."**

• **"I can't give you that choice because it would be bad for Danny" (have negative effect on another child).**

• **"I give you lots of choices, but this time it needs to be an adult choice."**

Potential Characteristics Chart

Use These Charts to Complete Scenarios!

For Individuals with Different Functional Limitations and Examples of Potential Modifications

Potential Characteristic	Potential Modification (s)
Physical Examples include: • walks with crutches, • walks with walker, • uses one arm to do things, • uses wheel chair, • may walk/swim at a slower pace • Fatigues easily/lower endurance (note: MS) • May have poor balance • May have poor Swallowing ability (Note: CP) • May have difficulty with coordination	• Ask individual about approaches • Adjust and teach Body Mechanics; • Apply principles of buoyancy • Introduce exercises as appropriate for function • Use Head as Rudder for directional; • Modify Stroke (may not be text book), • Focus on safety skills. • Shorten Distance; • Allow extra breaks and pace activities • Use barbell or H2O walker • Ask individual if they wear an "AFO" if they have an extra to wear in the pool with a tennis shoe (for walking) • For individual who have difficulty Swallowing: DO NOT PUT FACE or HEAD IN Water
Cognitive Examples: • individuals who: may have limitations with memory, • may have difficulty following tasks (or multiple tasks); • may be easily distracted, • may demonstrate difficulty understanding information or assignment, • May be impulsive • May exhibit difficulty with coordination • May exhibit short term memory loss	• Break down tasks; • shorten distance; • increase repetition; • minimize auditory instruction--increase demonstrations; • introduce drills and progressions-and repeat; • build on each session--from the beginning of the progression for review.... • Repeat information or ask individual to repeat information • provide cue cards
Sensory: ***Visual Limitations Examples*** • Limited site in one or both eyes • Peripheral vision may be limited • Loss of vision • Difficulty with depth perception	• Be aware of individuals' level of sight • Ask individual about approaches • when using demonstrations for rest of class...provide instructions orally; • orient individual to space; • provide clear verbal instructions; • Facilitate passive movement of stroke with individual.

Sensory: ***Hearing Loss Examples*** • Complete Loss • Partial Loss • Loss of Pitch • Sensitive to white noise	• Explore if individual reads lips or uses Sign language • Ask Instructor to request interpreter (if appropriate). • If individual reads lips--make sure the individual can SEE you when talking; • use visual cues and demonstrations;
Sensory: ***Touch Examples*** • Sensitive to hot/cold temperature • Loss of feeling • Hyper sensitive to water /chlorine	• Consider "wet wrap" for warmth (can be ordered on line) • Ask any individual who has limited feeling to wear socks or water shoes • Be aware of rough pool surfaces and heated lamps in the pool
Communication Examples: • Difficulty with Swallowing • Slurred Speech • Slow/delayed speech • Difficulty with finding words • Difficulty speaking • Stutters	• Talk in normal tones • Apologize for not understanding, and ask if individual would mind repeating • Give individual enough time to communicate • Sometimes individuals can spell it out (in air or on paper) • Some individuals may use a picture board or "talk" box (difficult to use in water) • Some individuals may use sign language NOTE: Important to recognize that communication challenges are not necessarily "coupled" with cognitive challenges.
Behavioral/Emotional Examples: • may exhibit difficulty interacting with others, • may be easily distracted, • may have difficulty following tasks or staying with the group, • might be resistant to authority, • may be impulsive	• 1:1 or small group interaction • Shorten distance; • repetition; • develop clear structure -of class; • set clear ground rules and reinforce; • Provide transition time between activities • Plan ahead and have multiple activities ready • enforce rules; • keep activity moving--don't allow down time;

Please complete to the best of Your Ability! No wrong Answers!

Scenario # 1:
Communication

Class: Swimming
Population: Children with Autism
Individual: 6 year old Boy

- difficulty focusing
- fear of water and cries
- does not like being touched
- runs out of the pool

Describe an activity or approach you might choose for swimmer?

How might you modify the environment?

How might you modify the activity if it doesn't work the first time?

Scenario # 2:
Physical

Class: Swimming
Population: Adults with Disabilities
Individual: 45 year old Female
walks with a walker

-
- left foot drags
- limited movement in left arm or hand
- has no previous experience in the water

Describe an activity or approach you might choose for swimmer?

How might you modify the environment?

How might you modify the activity if it doesn't work the first time?

Scenario # 3:
Behavioral/ Emotional

Class: Intro to Basic Strokes
Population: Children with Autism
Individual: 12 year old Boy

- Easily Distracted
- Yells Loudly
- Difficulty staying on task
- Likes to walk around the pool
- Can swim in deep water

Describe an activity or approach you might choose for swimmer?

How might you modify the environment?

How might you modify the activity if it doesn't work the first time?

Scenario # 4:
Cognitive

Class: Special Olympics Swim Team
Population: Adults with Disabilities
Individual: 10 year old Female

- Difficulty Following Directions
- Appears to have poor motor skills
- Easily distracted
- She likes to drink the water

Describe an activity or approach you might choose for swimmer?

How might you modify the environment?

How might you modify the activity if it doesn't work the first time?